

Smt. G.S.Rashmi vs Sri. Manjunath M S on 23 March, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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MFA No.2287 of 2017

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 23RD DAY OF MARCH, 2023
PRESENT
THE HON'BLE MR. JUSTICE ALOK ARADHE
AND
THE HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL
MISCELLANEOUS FIRST APPEAL NO.2287 OF 2017 (FC)
BETWEEN:

Digitally
signed by
RUPA V

Location: High
Court of
Karnataka

1. SMT. G.S. RASHMI
W/O MANJUNATH M.S.
D/O G N SHIVAKUMAR
AGED ABOUT 31 YEARS

RANGANATHA NILAYA

IST MAIN, 3RD CROSS
SHETTIHALLI ROAD
JAYANAGARA WEST
TUMKURU-572102.

...APPELLANT

(BY SRI. D.L. SURESH, ADV.,)
AND:

1. SRI. MANJUNATH M.S.
S/O M.H. SHIVANNA
AGED ABOUT 33 YEARS
R/AT VIGNESHWARA NILAYA, 2ND CROSS
MAHALAKSHMI NAGARA, GUBBI-572216.

...RESPONDENT

(BY SRI. ABHIJITH M.M. ADV., FOR C/RESPONDENT)

THIS MFA IS FILED UNDER SECTION 19(1) OF THE
FAMILY COURT ACT, 1984, AGAINST THE JUDGMENT AND
DECREE DATED 18.02.2017 PASSED IN M.C.NO.119 OF 2015
ON THE FILE OF THE PRINCIPAL JUDGE, FAMILY COURT,
TUMAKURU, ALLOWING THE PETITION FILED UNDER SECTION
13(1)(i-a) (i-b) OF THE HINDU MARRIAGE ACT, FOR
DISSOLUTION OF MARRIAGE.

THIS APPEAL COMING ON FOR HEARING, THIS DAY
ALOK ARADHE J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal under Section 19(1) of the Family courts Act, has been filed against the judgment and decree dated 18.02.2017 passed by the family court, by which the petition filed by the respondent / husband on the ground of cruelty and desertion has been allowed.

2. Facts giving rise to filing of this appeal briefly stated are that the marriage between the parties was solemnized on 28.04.2011 at Tumkuru. The appellant and respondent lived together in the matrimonial home in Gubbi for a period of two months. Out of the wedlock, a baby girl viz., Charvi was born on 21.09.2013. Admittedly, the respondent is employed as an officer in Karnataka Milk Federation at Gubbi, whereas, the appellant wife at the relevant time was working as a lecturer in Akshaya Engineering College, Tumkur. The respondent filed a petition on or about 17.06.2015 seeking dissolution of marriage. It was inter alia pleaded the wife was not cooperating with the husband in sexual matters. It was further pleaded that the wife left the matrimonial home without consent of the petitioner and used to scold the petitioner in a very vulgar language. It was also pleaded that the wife subjected the parents of the husband to misbehaviour and did not give any respect to them. Despite various panchayats being convened, the wife did not mend her ways and issued a threat that in case, she is forcibly sent to the house of the husband, she would commit suicide. It was averred that the wife got begotten test tube baby without the knowledge and consent of the husband. It was also pleaded that there is no cohabitation between the parties since, August 2011. Accordingly, a decree of dissolution of marriage was sought on the ground of desertion as well as cruelty.

3. The respondent entered appearance through counsel and filed statement of objections in which the factum of marriage was admitted. The averments made against her in the petition were denied. It was also pleaded that the parties liked each other and they married with the consent of their parents. It was pleaded that the parties stayed together in the matrimonial home for a period of two months. It was averred that the wife performed all the house hold works despite which she was subjected to humiliation. It was pleaded that the husband used to torture her mentally and physically. It was pleaded that out of the wedlock, a baby girl was born on 21.09.2013. It was also the stand of the wife that the husband was not happy about the news of the wife becoming pregnant. Even after the birth of the girl child, the husband did not visit to see the daughter of the parties.

4. The respondent in order to prove his case, examined himself and one M.A.Shivanna as PW2 and exhibited 6 documents viz., Ex.P1 to Ex.P6. The appellant examined herself as RW1 And exhibited 13 documents viz., Ex.R1 to Ex.R13. The family court vide judgment dated 18.02.2017 inter alia held that the wife became pregnant by taking the semen of donors without consent of husband, which

amounts to cruelty. The family court held that the respondent / husband has proved the ground of dissolution of marriage viz., the cruelty and desertion. Accordingly, the petition filed by the respondent / husband was allowed and the marriage performed between the parties was dissolved by a decree of divorce.

5. Learned counsel for the appellant submitted that the learned judge of the Family Court ought to have appreciated that there was no pleading in the petition with regard to desertion. It is further submitted that the learned judge has travelled beyond the pleading of the respondent and has granted a decree of divorce on the ground of cruelty on a ground, which was not even pleaded by the respondent. On the other hand, Learned counsel for the respondent has supported the judgment and decree passed by the family court.

6. We have considered the submissions made on both sides and have perused the record. A Five Judge Bench of the Supreme Court in LACHMAN UTAMCHAND KIRIPALANI Vs. MEENA @ MOTA which has been followed in DEBANANDA TAMULI Vs. KAKUMONI KATAKY while dealing with the expression 'desertion', has held that desertion means the intentional abandonment of the spouse by the other without the consent of the other and without a reasonable cause. It has further been held that deserted spouse must prove that there is a factum of separation and there is an intention on the part of deserting spouse to bring the cohabitation to a permanent end. It has also been held that in other words, there should be animus deserendi on the part of the deserting spouse. The issue whether a case of desertion is made out or not, depends on the facts of each case and is a matter of drawing an inference on the basis of evidence on record.

7. Similarly, in a petition seeking decree of divorce on the ground of cruelty, specific instances have to be pleaded and proved. (See: NEELAM KUMAR VS. DAYA RANI, (2010) 13 SCC 298). It is equally well settled legal principle that parties to a dispute are required to describe the major and standard of cruelty and to lead cogent evidence to succeed in the plea of dissolution of marriage on the ground of cruelty. (See: SMT.MAYADEVI Vs. JAGDISH PRASAD' AIR 2007 SC 1426). It is equally well settled legal proposition that mere difference of opinion between the couples and ordinary wear and tear of married life and the disputes between them, do not by itself amount to cruelty. (See: SAVITHRI PANDEY VS. PREM CHANDRA PANDEY', AIR 2002 SC 591).

8. In the backdrop of aforesaid well settled legal principles, we may advert to the facts of the case on hand. From close scrutiny of the averments made in the petition filed by the husband for dissolution of marriage, we find that the respondent / husband has no where pleaded the date on which the appellant /wife has left the matrimonial home. Similarly, the petition filed by the respondent / husband with regard to requirement that the parties have been living separately for a period of two years prior to the date of presentation of the petition is conspicuously silent. We have perused the evidence on record as well as the judgment rendered by the family court. From perusal of para 13 to 19 of the judgment passed by the family court, it is evident that the family court no where has recorded a finding that the parties have been living separately for a continuous period of two years prior to the date of presentation of the petition. In the absence of the statutory requirement as contained in Section 13(1)(ib) of the Hindu Marriage Act, 1955 having been pleaded and proved, no decree of divorce on the ground of desertion could have been granted. However, the family court

without assigning any reason has granted a decree for dissolution of marriage on the ground of desertion cannot be sustained in the eye of law.

9. The specific instance of cruelty are required to be pleaded and proved. From perusal of paragraphs 6 to 8 of the petition filed by the respondent / husband, it is evident that no specific instance of cruelty have been pleaded. It is not the case of the respondent / husband that he is not the father of the girl child. It is also relevant to mention here that it is not the case of the respondent / husband that since, the appellant / wife became pregnant by taking semen of some other person, therefore, it amounts to cruelty. From the pleading as well as the evidence of the respondent / husband, it is evident that he has stated that he had given his semen on one occasion. Therefore, in the absence of any pleading, the family court in our considered opinion has clearly travelled beyond the case set up by the respondent / husband and has granted a decree of divorce on the ground which was not even pleaded by the respondent / husband. For the aforementioned reasons, the judgment and decree passed by the family court cannot be sustained in the eye of law. It is accordingly set aside and the petition filed by the respondent / husband under Section 13 of the Hindu Marriage Act, 1955 is dismissed.

In the result, the appeal is allowed.

Sd/-

JUDGE Sd/-

JUDGE SS